

SKID ROW FAMILY PRESERVATION PROTOCOLS

Caseworker Administrative Manual & Field Implementation Guide

1. OVERVIEW: THE FAMILY PRESERVATION CRISIS

In urban containment and extremely low-income areas like Skid Row, housing instability frequently triggers rapid and devastating family dissolution. Research indicates that approximately **one-third of unhoused families** are separated by the child welfare system [305]. This separation often results in foster care placements that phase biological parents entirely out of administrative tracking, a state known as **'Invisible Parenthood'** [305]. Separation inflicts severe trauma on youth, who experience triple the rate of mental health issues, lower nutrition, and double the academic grade retention rate of their housed peers [305]. To prevent this cycle of systemic trauma, caseworkers must immediately deploy legal, financial, and educational shields to stabilize families in place.

2. DCSS 0909: VOLUNTARY DECLARATION OF PARENTAGE

Under California law, a child's birth certificate **does not legally establish parentage** for unmarried couples [41, 307]. Establishing parentage is an absolute prerequisite to secure federal child dependency benefits, Medi-Cal coverage, and child support pass-through exemptions [307].

- **Caseworker Action:** Provide Form DCSS 0909 to unmarried parents immediately [60].
- **Witness Requirements:** Signatures must be officially witnessed by an authorized agency, which includes: **Birth Hospitals** (at birth), **Local Child Support Agencies**, **County Welfare Departments (DPSS)**, or **Family Law Facilitators at Courts** [41-42]. Do not accept simple notarization [35].

3. CW 51: GOOD CAUSE CLAIM FOR NON-COOPERATION

While CalWORKs requires cooperation with child support enforcement to receive the full grant, clients are **exempt** if cooperation would increase the risk of physical, sexual, or emotional harm to the child or parent (e.g., domestic violence survivors) [33, 54, 63]. EWs must presume Good Cause is appropriate for domestic abuse survivors [64].

- **Sanction Protection:** The county **cannot** apply a 25% non-cooperation penalty unless the worker has specifically contacted the client, informed them of the Good Cause exemptions, and determined if Good Cause exists [34, 54, 65].
- **Low-Barrier Verification:** If formal police or court records are missing, a signed personal affidavit (Form GEN 853) is legally acceptable verification of abuse [65, 78]. No penalty can be applied while a Good Cause claim is pending.

4. K1 / 3F AID CODE EXEMPTIONS & PASS-THROUGH BENEFIT

Families assigned to safety-net, long-term GAIN sanctioned, or fleeing felon cases are placed under **K1 (single parent) or 3F (two-parent) aid codes** [43]. Under the July 1, 2024 revised rules, K1/3F cases have extensive protections:

1. They are **completely exempt** from child support cooperation and assigning rights [32, 66].
2. All current child support collections **must be passed through directly to the family** rather than being kept by the county to recoup past welfare costs [32, 68].
3. Passed-through child support is **100% exempt from consideration as income** or resources for CalWORKs eligibility [32, 68].

VOLUNTARY DECLARATION OF PARENTAGE**FORM DCSS 0909 - ADMINISTRATIVE HELPER & INTAKE WORKSHEET**

IMPORTANT INSTRUCTIONS: This form is used to establish a legal parent-child relationship for children born to unmarried parents [41]. Both parents must sign in the presence of an authorized witnessing agent [41]. Once filed with the Department of Child Support Services (DCSS), this declaration has the same force and effect as a court order [35, 41]. Caseworkers must ensure this form is completed and filed to unlock CalWORKs, Medi-Cal, and child support pass-throughs [307].

SECTION I: CHILD'S INFORMATION**CHILD'S LEGAL FIRST NAME ***

Enter first name exactly as it appears on birth certificate

MIDDLE NAME**LAST NAME(S) ***

Enter last name(s)

DATE OF BIRTH *

MM/DD/YYYY

CITY OF BIRTH *

City where born

STATE / COUNTRY OF BIRTH *

State or Country

SECTION II: MOTHER'S INFORMATION & DECLARATION**MOTHER'S LEGAL FIRST NAME ***

Enter full legal first name

MIDDLE NAME**LAST NAME(S) AT CHILD'S BIRTH ***

Maiden/Birth last name

STREET ADDRESS (or Street Outreach Alias/SafeLink Mailing Address) *

Use safe mailing address

CITY ***STATE *****ZIP CODE *****DATE OF BIRTH ***

MM/DD/YYYY

STATE / COUNTRY OF BIRTH ***SAFELINK / PHONE NUMBER ***

Include area code

MOTHER'S DECLARATION: I declare that I am the biological mother of the child named in Section I. I have read and understand the rights, responsibilities, and consequences on the reverse of this form. I consent to the establishment of parentage as declared herein. I declare under penalty of perjury under the laws of the State of California that the foregoing is true and correct.

MOTHER'S SIGNATURE *

Sign in ink

DATE SIGNED *

MM/DD/YYYY

SECTION III: FATHER'S / OTHER PARENT'S INFORMATION & DECLARATION**FATHER'S LEGAL FIRST NAME ***

Enter full legal first name

MIDDLE NAME**LAST NAME(S) ***

Enter last name

STREET ADDRESS *

Use current or outreach mailing address

CITY ***STATE *****ZIP CODE *****DATE OF BIRTH ***

MM/DD/YYYY

STATE / COUNTRY OF BIRTH ***PHONE NUMBER**

Include area code

FATHER'S / OTHER PARENT'S DECLARATION: I declare that I am the biological father (or parent under assisted reproductive technology) of the child named in Section I [60]. I have read and understand my rights, responsibilities, and consequences. I voluntarily accept the legal duties of parentage, including the duty of support. I declare under penalty of perjury under the laws of the State of California that the foregoing is true and correct.

**FATHER'S / OTHER
PARENT'S SIGNATURE**
*

Sign in ink

DATE SIGNED *

MM/DD/YYYY

SECTION IV: AUTHORIZED WITNESS SIGNATURE BLOCK (MANDATORY)

To be completed only by an authorized representative of a birthing hospital, local child support agency, county welfare department (DPSS), court (family law facilitator), or local registrar [41-42]. Notarization is NOT a valid substitute for this witnessed block in California welfare offices [35].

**WITNESSING AGENCY
NAME ***

e.g., Los Angeles County
DPSS, Star Health Clinic

WITNESS TYPE *

e.g., County Caseworker,
Hospital Staff

**PRINTED NAME OF
AUTHORIZED WITNESS**
*

Full name of witness

WITNESS SIGNATURE *

Sign in ink

DATE WITNESSED *

MM/DD/YYYY

GOOD CAUSE CLAIM FOR NON-COOPERATION

FORM CW 51 - CHILD SUPPORT ENFORCEMENT EXEMPTION

INSTRUCTIONS FOR APPLICANT/PARTICIPANT: If you are applying for or receiving CalWORKs, you must cooperate with the county and Child Support Services Department (CSSD) to establish parentage and collect support [33]. However, you are exempt from this rule if you have **Good Cause** [62]. CSSD will cease all collection and enforcement activities once Good Cause is claimed, and your grant **cannot** be penalized while this claim is being evaluated [59, 62]. Please check your reason(s) below and complete this form [65].

SECTION I: CLIENT & CASE IDENTIFICATION

CLIENT'S FULL LEGAL NAME *

Enter first, middle, last name

CASE NUMBER (if assigned)

DATE OF REQUEST *

MM/DD/YYYY

CHILD'S NAME (for whom Good Cause is claimed) *

Submit a separate form for each absent parent

ABSENT PARENT'S FULL NAME *

Enter name of parent from whom you are withholding cooperation

SECTION II: REASONS FOR CLAIMING GOOD CAUSE (CHECK ALL THAT APPLY)

Check the box(es) that correspond to your situation. Under California regulations, eligibility workers must presume Good Cause is appropriate if you are a survivor of domestic abuse [64].

- ☐ **PHYSICAL OR EMOTIONAL HARM TO THE CHILD:** Cooperation is reasonably anticipated to result in serious physical or emotional harm to the child for whom support is sought [33, 63].
- ☐ **PHYSICAL OR EMOTIONAL HARM TO THE MOTHER/CAREGIVER:** Cooperation is reasonably anticipated to result in serious physical or emotional harm, or domestic abuse, to the mother or caretaker relative [63].
- ☐ **RAPE OR INCEST:** The child for whom support is sought was conceived as a result of incest or rape (verification may be medical, legal, or personal affidavit) [33, 63].
- ☐ **ADOPTION PENDING:** Legal proceedings for the adoption of the child are currently pending before a court [33, 63].
- ☐ **ADOPTION COUNSELING:** You are currently being assisted by a public or licensed private adoption agency to resolve the issue of whether to keep the child or relinquish them for adoption [33, 63].
- ☐ **OTHER CREDIBLE REASONS:** There are other credible, documented reasons why child support cooperation would not be in the best interest of the child (specify in Section III below) [63].

SECTION III: STATEMENT OF FACT & SUMMARY OF RISK

Describe below the specific circumstances, threats, or history of abuse that justify this Good Cause claim. If you do not have formal police or court records, you may attach a signed personal affidavit (Form GEN 853) which is legally sufficient verification of abuse in California [65, 78].

SUMMARY OF THE RISK OR HARM *

Provide details of the risk (attach additional pages if necessary)

SECTION IV: VERIFICATION DOCUMENTS ATTACHED (CHECK ALL THAT APPLY)

- ☐ **GEN 853 Personal Affidavit:** Attached as Page 4 of this protective intake packet [78].
- ☐ **Police or Law Enforcement Records:** Police reports, domestic violence arrest logs, or restraining orders [78].
- ☐ **Court Documents:** Restraining orders, pending adoption petitions, or custody filings [77].
- ☐ **Medical / Mental Health Records:** Hospital records, therapy logs, or rape crisis center documentation [77].
- ☐ **Adoption Statement:** Written statement from a licensed public or private adoption agency [77].

SECTION V: CLIENT SIGNATURE & PERJURY DECLARATION

I declare under penalty of perjury under the laws of the State of California that the information provided on this form, including any attached statements, is true, correct, and complete to the best of my knowledge.

CLIENT'S SIGNATURE *

Sign in ink

DATE SIGNED *

MM/DD/YYYY

SUPPORTING AFFIDAVIT**FORM GEN 853 - GENERAL EVIDENCE & PERSONAL DECLARATION**

ADMINISTRATIVE RULE: This affidavit is provided pursuant to California Department of Public Social Services regulations [78]. A signed personal affidavit is legally acceptable and sufficient verification when Good Cause is claimed due to the risk of physical, sexual, or emotional harm to the family, especially in cases of domestic abuse or where street-level transient status prevents the preservation of formal physical records [65, 78]. No further documentation is required to establish Good Cause if this affidavit contains a credible statement of risk [65].

SECTION I: DECLARANT INFORMATION**FULL LEGAL NAME OF
DECLARANT ***

Enter first, middle, last name

**CASE NUMBER (if
known)****DATE OF STATEMENT ***

MM/DD/YYYY

SECTION II: DETAILED DECLARATION OF THE HARASSMENT, THREAT, OR RISK

Please provide a detailed statement of the events, threats, or risk of harm that would occur if you cooperated with child support enforcement against the absent parent. Be as specific as possible regarding dates, locations, and the nature of the fear or harm. Attach additional sheets of paper if more space is required [78].

DECLARATION STATE OF FACTS:**SECTION III: SIGNATURE, PERJURY DECLARATION, & CASEWORKER WITNESS BLOCK**

I declare under penalty of perjury under the laws of the State of California that the information and facts asserted in this affidavit are true, correct, and complete to the best of my knowledge.

**DECLARANT'S
SIGNATURE ***

Sign in ink

DATE SIGNED *

MM/DD/YYYY

CASEWORKER WITNESS BLOCK: *The caseworker should witness the declarant's signature to ensure administrative and evidentiary validity within DPSS records [32].*

**PRINTED NAME OF
CASEWORKER /
WITNESS ***

Full name

**CASEWORKER /
WITNESS SIGNATURE ***

Sign in ink

DATE WITNESSED *

MM/DD/YYYY